

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3131

By: West (Kevin)

COMMITTEE SUBSTITUTE

An Act relating to homeless shelter standards;
creating the Oklahoma Homeless Shelter Safety and
Accountability Act; establishing minimum statewide
standards for certain providers receiving state-
administered funds and state-administered federal
funds; limiting rulemaking authority; providing for
financial transparency and aggregate reporting;
providing complaint, enforcement, and appeal
procedures; preserving local zoning authority;
creating an advisory board with limited duration;
providing for sunset; providing for noncodification;
providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Oklahoma
Homeless Shelter Safety and Accountability Act".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1200 of Title 63, unless there
is created a duplication in numbering, reads as follows:

As used in this act:

1. "Homeless shelter provider" means a public or private entity operating a facility providing temporary overnight shelter to individuals experiencing homelessness and receiving state-administered funds or state-administered federal funds;

2. "Material noncompliance" means failure to meet a minimum standard expressly authorized in Section 5 of this act after written notice and expiration of the cure period provided in Section 9 of this act;

3. "Material safety event" means:

- a. death not resulting from natural causes,
- b. serious bodily injury requiring emergency transport or hospitalization,
- c. fire requiring response by a fire department,
- d. violent felony offense reported to law enforcement, or
- e. a condition presenting an imminent threat to life or physical safety;

4. "On the premises" means within property under control of the provider;

5. "State-administered federal funds" means federal funds received by a state agency and distributed through grant, contract, or subrecipient agreement; and

6. "State-administered funds" means funds appropriated by the Legislature or otherwise disbursed by a state agency.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1201 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 A. Nothing in this act shall create, replace, alter, redefine,
5 or supersede any continuum of care established pursuant to federal
6 law or administered by the United States Department of Housing and
7 Urban Development.

8 B. Nothing in this act shall:

9 1. Establish a statewide continuum of care;

10 2. Replace or modify federal homeless management information
11 system (HMIS) governance structures; or

12 3. Alter coordinated entry systems established under federal
13 law.

14 C. In the event of a conflict between this act and applicable
15 federal grant requirements, federal requirements shall control.

16 D. Compliance with this act shall be a condition of eligibility
17 for receipt of state-administered funds and state-administered
18 federal funds.

19 E. To the extent practicable, the State Department of Health
20 shall accept existing federal or state reports in satisfaction of
21 reporting requirements under this act.

22 SECTION 4. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 1202 of Title 63, unless there
24 is created a duplication in numbering, reads as follows:

1 This act applies only to homeless shelter providers receiving
2 state-administered funds and state-administered federal funds.

3 Providers receiving federal funds directly from a federal agency
4 without state administration are not subject to this act unless
5 otherwise required by state law.

6 SECTION 5. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1203 of Title 63, unless there
8 is created a duplication in numbering, reads as follows:

9 A. The State Department of Health may promulgate rules strictly
10 limited to implementing the minimum standards expressly authorized
11 in this section.

12 B. Rulemaking authority is confined solely to:

13 1. Basic life safety standards consistent with existing
14 applicable building and fire codes;

15 2. Minimum sanitation and hygiene standards;

16 3. Reporting procedures for material safety events;

17 4. Documentation verifying occupancy limits consistent with
18 local approvals; and

19 5. Staff training standards limited to safety, emergency
20 response, and facility operations.

21 C. The State Department of Health shall not:

22 1. Create or establish a statewide continuum of care structure;

23 2. Establish mandatory performance benchmarks or outcome
24 thresholds;

1 3. Create system-wide reduction targets;

2 4. Require submission of client-level personally identifiable
3 information;

4 5. Duplicate federal homeless management information system
5 (HMIS) reporting requirements;

6 6. Impose zoning or land use requirements;

7 7. Establish licensing requirements beyond those required by
8 law;

9 8. Regulate clinical or medical services unless required by
10 separate statute; or

11 9. Expand the scope of this act beyond providers receiving
12 state-administered funds.

13 D. Any expansion beyond subsection B of this section requires
14 express legislative enactment.

15 SECTION 6. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 1204 of Title 63, unless there
17 is created a duplication in numbering, reads as follows:

18 A. As a condition of eligibility for state-administered funds
19 or state-administered federal funds, a homeless shelter provider
20 shall submit to the Oklahoma Department of Commerce documentation
21 sufficient to demonstrate lawful expenditure of such funds.

22 B. The Department may require:

23 1. Audit documentation consistent with federal single audit
24 requirements when applicable;

1 2. Tiered financial review thresholds based on the amount of
2 state-administered funds or state-administered federal funds
3 received;

4 3. Financial statements appropriate to the level of funding
5 received; and

6 4. Documentation already required under federal or state grant
7 agreements.

8 C. The Department shall align reporting requirements with
9 existing federal and state grant documentation and shall, to the
10 extent practicable, accept substantially similar documentation in
11 satisfaction of this section.

12 SECTION 7. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1205 of Title 63, unless there
14 is created a duplication in numbering, reads as follows:

15 A. Providers shall submit annual aggregate data including:

16 1. Authorized bed or unit capacity;

17 2. Average occupancy rates;

18 3. Aggregate counts of material safety events;

19 4. Aggregate counts of emergency responses;

20 5. Aggregate exits to permanent housing;

21 6. Aggregate returns to homelessness or unknown exits; and

22 7. Aggregate referrals to treatment or behavioral health
23 services.
24

1 B. Outcome data shall be used solely for transparency and
2 public planning purposes.

3 C. Funding eligibility shall not be conditioned on achieving
4 specific outcome percentages or performance benchmarks beyond those
5 required as a condition of receipt of state-administered funds or
6 state-administered federal funds.

7 D. Reports shall not include personally identifiable
8 information beyond what is required under applicable federal law.

9 SECTION 8. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 1206 of Title 63, unless there
11 is created a duplication in numbering, reads as follows:

12 A. The State Department of Health shall maintain a complaint
13 process limited to health and safety compliance pursuant to Section
14 5 of this act.

15 B. The Oklahoma Department of Commerce shall maintain
16 administrative procedures related to financial compliance and
17 funding eligibility.

18 C. No provider shall retaliate against an employee, volunteer,
19 client, or other individual who submits a complaint in good faith.

20 SECTION 9. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1207 of Title 63, unless there
22 is created a duplication in numbering, reads as follows:
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1 A. Upon written notice of deficiency issued by the State
2 Department of Health, a provider shall have thirty (30) days to
3 cure.

4 B. If a condition presents an imminent threat to life or
5 safety, the State Department of Health may take immediate action
6 consistent with its statutory authority and shall notify the
7 Oklahoma Department of Commerce.

8 C. If a provider fails to cure a material health and safety
9 deficiency, the Department of Health shall formally notify the
10 Oklahoma Department of Commerce.

11 D. Upon receipt of such notification, or upon independent
12 determination of financial noncompliance, the Oklahoma Department of
13 Commerce may:

14 1. Suspend, withhold, or declare ineligible the provider's
15 receipt of state-administered funds and state-administered federal
16 funds; and

17 2. Issue formal written recommendations to both the Board of
18 County Commissioners and the governing body of the municipality in
19 which the provider operates that the provider be restricted or
20 terminated from continuing to provide services.

21 E. Enforcement actions are administrative in nature.

22 F. Providers are entitled to appeal enforcement actions
23 pursuant to the Oklahoma Administrative Procedures Act.

24 G. Nothing in this act creates a private right of action.

1 H. Neither the State Department of Health nor the Oklahoma
2 Department of Commerce shall have authority to revoke or suspend
3 local permits, zoning approvals, or certificates of occupancy.

4 SECTION 10. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1208 of Title 63, unless there
6 is created a duplication in numbering, reads as follows:

7 Nothing in this act supersedes or preempts local zoning, land
8 use, building, fire, health, or permitting authority, nor requires a
9 political subdivision to approve or site a homeless facility. Local
10 governments may adopt and enforce standards more stringent than
11 those established pursuant to this act.

12 SECTION 11. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1209 of Title 63, unless there
14 is created a duplication in numbering, reads as follows:

15 A. There is hereby created the Oklahoma Homeless Shelter
16 Standards Advisory Board.

17 B. The Board shall be advisory only and shall consist of nine
18 (9) voting members. Recommendations shall not have the force of law
19 unless enacted by the Legislature.

20 C. The Commissioner of Health shall serve as chair and shall
21 vote only in the event of a tie.

22 D. Membership of the board shall consist of:

23 1. One member appointed by the Governor;
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1 2. One member appointed by the Speaker of the Oklahoma House of
2 Representatives;

3 3. One member appointed by the President Pro Tempore of the
4 Oklahoma State Senate;

5 4. One county commissioner appointed by the Oklahoma
6 Association of County Commissioners;

7 5. One municipal representative appointed by the Oklahoma
8 Municipal League, preferably from a municipality with demonstrated
9 experience administering homeless shelter services;

10 6. One representative of a homeless services provider appointed
11 by the Governor;

12 7. One public health professional appointed by the Speaker of
13 the House;

14 8. One representative of law enforcement or emergency medical
15 services appointed by the President Pro Tempore of the Senate; and

16 9. One additional member appointed jointly by the Speaker of
17 the House and the President Pro Tempore of the Senate.

18 E. The Board shall:

19 1. Advise the State Department of Health regarding health and
20 safety rule development;

21 2. Advise the Oklahoma Department of Commerce regarding
22 financial reporting alignment; and

23 3. Submit annual recommendations to the Legislature.
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1 F. The Board may, by majority vote, call upon up to five (5)
2 at-large, non-voting subject matter experts for consultation. Such
3 individuals shall serve in an advisory capacity only and shall not
4 possess voting authority.

5 G. Members shall serve without compensation.

6 SECTION 12. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1210 of Title 63, unless there
8 is created a duplication in numbering, reads as follows:

9 The Oklahoma Homeless Shelter Standards Advisory Board shall
10 cease to exist five (5) years from the effective date of this act.

11 SECTION 13. This act shall become effective November 1, 2026.

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